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District of Utah (Central)
CIVIL DOCKET FOR CASE #: 2:23-cv-00559-JNP

Ferreri v. City of American Fork et al
Assigned to: Judge Jill N. Parrish
Cause: 42:1983 Civil Rights Act

Date Filed: 08/24/2023
Date Terminated: 05/13/2025
Jury Demand: Plaintiff
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff**Joseph E Ferreri**

represented by **John M. Mejia**
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ATTORNEY TO BE NOTICED

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V.

Defendant**City of American Fork**

represented by **Michael L. Ford**
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Defendant

Shawn E Lott

represented by **Michael L. Ford**
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Notice Party

Department of Corrections
TERMINATED: 01/14/2025

represented by **Jann L. Farris**
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TERMINATED: 01/14/2025
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Date Filed	#	Docket Text
08/24/2023	<u>1</u>	COMPLAINT <i>and Jury Demand</i> against All Defendants (Filing fee \$ 402, receipt number AUTDC-4788704) filed by Joseph E Ferreri. (Attachments: # <u>1</u> Civil Cover Sheet) (Porter, Karra) (Entered: 08/24/2023)
08/25/2023		Judge Jill N. Parrish added. Case number will now read 2:23-cv-00559-JNP . Please make changes to document captions accordingly. (haa) (Entered: 08/25/2023)
08/25/2023	<u>2</u>	NOTICE OF MAGISTRATE JUDGE AVAILABILITY TO PRESIDE OVER CASE- Under 28 U.S.C. 636(c), Fed. R. Civ. P. 73, and DUCivR 72-4, you are hereby notified that a magistrate judge for the District of Utah may conduct any or all proceedings in this case, including a jury or bench trial and entry of a final judgment. Exercise of this jurisdiction by the magistrate judge is permitted only if all parties voluntarily sign and return the form. To consent, return the Consent Form to the clerk's office within 21 days via email at consents@utd.uscourts.gov or mail at the address on the form. Please do not efile the Consent Form in the case. Notice e-mailed or mailed to Plaintiff Joseph E Ferreri. Form due by 9/15/2023. (haa) (Entered: 08/25/2023)

08/25/2023	3	NOTICE OF INELIGIBLE ATTORNEY -Attorney M. Tanner Clagett, for Plaintiff Joseph E Ferreri, has been notified that he/she is not in active status and can not practice before this court. (haa) (Entered: 08/25/2023)
08/29/2023	4	NOTICE of Appearance by M. Tanner Clagett on behalf of Joseph E Ferreri (Clagett, M.) (Entered: 08/29/2023)
08/31/2023	5	CIVIL STANDING ORDER Signed by Judge Jill N. Parrish on 8/31/2023. (lwh) (Entered: 08/31/2023)
08/31/2023	6	ORDER REFERRING CASE to Magistrate Judge Jared C. Bennett under 28:636 (b)(1) (A), Magistrate Judge to hear and determine all nondispositive pretrial matters. No attached document. Signed by Judge Jill N. Parrish on 8/31/2023. (lwh) (Entered: 08/31/2023)
09/01/2023	7	ORDER TO PROPOSE SCHEDULE - See order for details. Signed by Magistrate Judge Jared C. Bennett on 9/1/23 (alt) (Entered: 09/01/2023)
09/12/2023	8	Summons Issued Electronically as to Shawn E Lott. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (kec) (Entered: 09/12/2023)
09/12/2023	9	Summons Issued Electronically as to City of American Fork. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (kec) (Entered: 09/12/2023)
09/22/2023	10	WAIVER OF SERVICE Returned Executed filed by Joseph E Ferreri as to All Defendants. (Clagett, M.) (Entered: 09/22/2023)
11/30/2023	11	NOTICE of Appearance by Robert L. Janicki on behalf of City of American Fork, Shawn E Lott (Janicki, Robert) (Entered: 11/30/2023)
11/30/2023	12	NOTICE of Appearance by Michael L. Ford on behalf of City of American Fork, Shawn E Lott (Ford, Michael) (Entered: 11/30/2023)
11/30/2023	13	Stipulated MOTION for Extension of Time to File Answer re 1 Complaint filed by Defendants City of American Fork, Shawn E Lott. (Attachments: # 1 Text of Proposed Order) Motions referred to Jared C. Bennett.(Ford, Michael) (Entered: 11/30/2023)
12/01/2023	14	ORDER granting 13 Stipulated Motion for Extension of Time to Answer 1 Complaint: Defendants shall submit their response to the Complaint on or before December 29, 2023. Signed by Magistrate Judge Jared C. Bennett on 11/30/23. (dle) (Entered: 12/01/2023)
12/28/2023	15	ANSWER to Complaint with Jury Demand filed by City of American Fork, Shawn E Lott. (Ford, Michael) (Entered: 12/28/2023)
01/11/2024	16	REPORT OF ATTORNEY PLANNING MEETING. (Attachments: # 1 Text of Proposed Order Stipulated Scheduling Order)(Porter, Karra) (Entered: 01/11/2024)
01/12/2024	17	NOTICE OF DEFICIENCY re 16 Attorney Planning Meeting Report. The clerk requests the filer of the original document to file a Stipulated Motion for Scheduling Order as directed in 7 Order to Propose Schedule, paragraph 3. The new pleading will receive a new document number on the docket. (dle) (Entered: 01/12/2024)
01/16/2024	18	Stipulated MOTION for Scheduling Order filed by Plaintiff Joseph E Ferreri. (Attachments: # 1 Exhibit A: Attorney Planning Meeting Report, # 2 Text of Proposed

		Order Stipulated Scheduling Order) Motions referred to Jared C. Bennett.(Porter, Karra) (Entered: 01/16/2024)
01/16/2024	19	SCHEDULING ORDER granting 18 Motion for Scheduling Order. Amended Pleadings due by 8/28/2024. Joinder of Parties due by 8/28/2024. Expert Discovery due by 11/20/2024. Motions due by 12/30/2024. Signed by Magistrate Judge Jared C. Bennett on 1/16/24 (alt) (Entered: 01/16/2024)
03/01/2024	20	*SEALED DOCUMENT* SEALED MOTION filed by Defendants City of American Fork, Shawn E Lott. (Attachments: # 1 Text of Proposed Order) Motions referred to Jared C. Bennett. (dle) (Entered: 03/04/2024)
09/04/2024	22	DESIGNATION OF EXPERTS Rick S. Hoffman filed by Plaintiff Joseph E Ferreri. (Porter, Karra) (Entered: 09/04/2024)
12/30/2024	23	AMENDED NOTICE OF HEARING: (Notice generated by JNP Chambers) Scheduling Conference reset for 1/9/2025 at 02:00 PM VIA ZOOM before Judge Jill N. Parrish. Hearing will be vacated if dispositive motions are filed. (lwh) (Entered: 12/30/2024)
12/31/2024	24	NOTICE of Appearance by John M. Mejia on behalf of Joseph E Ferreri (Mejia, John) (Entered: 12/31/2024)
01/06/2025	25	AMENDED NOTICE OF HEARING: (Notice generated by JNP Chambers) Scheduling Conference reset for 1/14/2025 at 01:00 PM VIA ZOOM before Judge Jill N. Parrish. Hearing reset due to court calendar. (lwh) (Entered: 01/06/2025)
01/14/2025	26	Minute Entry for proceedings held before Judge Jill N. Parrish: Scheduling Conference held on 1/14/2025. All parties appear via zoom. Court hears status of the case. Court will refer the case to a magistrate judge for a settlement conference if both parties agree that a referral would be productive. Parties are to send an email to the courtroom deputy if a referral is requested. Court sets three-day jury trial to begin on September 15, 2025. Court sets an in-person Final Pretrial Conference for September 10, 2025 at 2:00 p.m. A Trial Order will be issued shortly. Court adjourned. Attorney for Plaintiff: Karra J. Porter John M. Mejia, Attorney for Defendant: Michael L. Ford. Court Reporter: Laura Robinson. Recording: ZOOM.(lwh) (Entered: 01/14/2025)
01/14/2025	27	NOTICE OF HEARING: (Notice generated by JNP Chambers) Final Pretrial Conference set for 9/10/2025 at 02:00 PM in Rm 8.200 before Judge Jill N. Parrish. Three-Day Jury Trial set for 9/15/2025 at 08:30 AM in Rm 8.200 before Judge Jill N. Parrish. (lwh) (Entered: 01/14/2025)
01/14/2025	28	NOTICE OF WITHDRAWAL OF COUNSEL of Jann L. Farris filed by Jann L. Farris on behalf of Department of Corrections (Farris, Jann) (Entered: 01/14/2025)
01/15/2025	29	TRIAL ORDER: Final Pretrial Conference set for 9/10/2025 at 02:00 PM in Rm 8.200 before Judge Jill N. Parrish. THREE-DAY Day Jury Trial set for 9/15/2025 at 08:30 AM in Rm 8.200 before Judge Jill N. Parrish. Signed by Judge Jill N. Parrish on 1/15/25. (dle) (Entered: 01/15/2025)
01/15/2025	30	ORDER REFERRING CASE to Magistrate Judge Cecilia M. Romero under 28:636 (b)(1) for Settlement. No attached document. Signed by Judge Jill N. Parrish on 1/15/2025. (lwh) (Entered: 01/15/2025)

01/16/2025	31	DOCKET TEXT ORDER TO SUBMIT PROPOSED SETTLEMENT CONFERENCE DATES. Counsel shall, by 1/23/25, jointly contact chambers at utdecf_romero@utd.uscourts.gov with proposed dates to schedule the settlement conference. No attached document. Signed by Magistrate Judge Cecilia M. Romero on 1/16/2025. (jfm) (Entered: 01/16/2025)
01/27/2025	32	SETTLEMENT ORDER: Settlement Conference set for 3/17/2025 at 09:00 AM Via Zoom Video Conference Magistrate Judge Cecilia M. Romero. Pre-settlement Conference Call set for 3/3/2025 at 10:00 AM Via Zoom Video Conference before Magistrate Judge Cecilia M. Romero. Signed by Magistrate Judge Cecilia M. Romero on 1/27/25. (dle) (Entered: 01/27/2025)
02/25/2025	33	DOCKET TEXT ORDER TO COMPLY WITH 32 SETTLEMENT ORDER. The court ordered the parties to submit confidential settlement statements no later than February 24, 2025. The court is in receipt of Defendant's Confidential Settlement Statement. No submission has been made by Plaintiff. The court orders Plaintiff to submit a settlement statement no later than close of business on February 27, 2025. Failure to comply will result in cancellation of the settlement conference. No attached document. Signed by Magistrate Judge Cecilia M. Romero on 2/25/2025. (jfm) (Entered: 02/25/2025)
03/04/2025	34	Minute Entry for proceedings held before Magistrate Judge Cecilia M. Romero: Pre-Settlement Conference Call held on 3/3/2025. Plaintiff present via Zoom. Settlement conference details were discussed. The settlement conference will proceed as scheduled for March 17, 2025, at 9:00 AM. Written Order to follow: No. Attorneys for Plaintiff: Karra J. Porter and John M. Mejia. Attorney for Defendants: Michael L. Ford. Court Reporter: Electronic/Zoom. (Time Start: 10:05 AM, Time End: 11:14 AM, Room: Zoom.) (Time Start: 10:05:00, Time End: 11:14:00, Room Romero ZOOM.)(reb) (Entered: 03/04/2025)
03/17/2025	35	Minute Entry for proceedings held before Magistrate Judge Cecilia M. Romero: Settlement Conference held on 3/17/2025. All parties present via Zoom. Plaintiff Joseph Ferreri present. Adriane Price present on behalf of Defendants. The matter has been resolved. The court set deadline for Defendants to send settlement agreement by 3/24/25, Plaintiff to execute agreement by 3/31/25, and dismissal documents to be filed no later than 5/15/25. Written Order to follow: No. Attorneys for Plaintiff: Karra J. Porter, John M. Mejia. Attorney for Defendants: Michael L. Ford. Court Reporter: Electronic/Zoom. (Time Start: 9:11 AM, Time End: 11:48 AM, Room: Zoom.) Court Reporter: Electronic via ZOOM.(Time Start: 9:11:00, Time End: 11:48:00, Room Zoom Hearing Judge Romero's Chambers.)(reb) (Entered: 03/17/2025)
05/13/2025	36	STIPULATION of Dismissal <i>with Prejudice</i> by Joseph E Ferreri. (Porter, Karra) (Entered: 05/13/2025)
05/13/2025		Civil Case Terminated in light of 36 Stipulation of Dismissal With Prejudice. Case closed. Magistrate Judge Jared C. Bennett and Magistrate Judge Cecilia M. Romero no longer assigned to case. (dle) (Entered: 05/13/2025)